

HOUSE BILL 746

By Fritts

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to public schools.

WHEREAS, one of the duties of the General Assembly is to protect the citizen and public funding base from costs that should not be borne by public funding; and

WHEREAS, Article XI, Section 12 of the Constitution of Tennessee clearly assigns authority to the General Assembly to provide for the maintenance, support, and eligibility standards for a system of free public schools; and

WHEREAS, the provisions of the constitution guaranteeing equal protection of the law to all citizens require that the educational opportunities provided by the system of free public schools be substantially equal; and

WHEREAS, the ability to maintain a system of free public schools is jeopardized if the eligibility standards are interpreted to include all citizens of the world who are not Tennessee citizens; and

WHEREAS, it is common to require information regarding Tennessee students as they enroll to participate in free public schools and while children may attend public schools outside their district, determining the residence of the child is important for numerous reasons; and

WHEREAS, it is a reasonable and fiscally responsible approach to require an investment in the education costs for foreign children who are utilizing our system of free public schools; and

WHEREAS, the General Assembly finds that this reasonable and fiscally responsible approach provides all children an opportunity to attend schools receiving public funds in

Tennessee and appropriately assigns responsibility to citizens of foreign nations to help bear the cost; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 31, is amended by adding the following as a new section:

(a) Except as provided in subsection (b), a parent or guardian who wishes to enroll the parent's or guardian's student into an LEA or public charter school shall submit one (1) of the following documents to the LEA or public charter school upon enrollment of the student:

(1) A copy of the student's birth certificate that lists a place of birth within the United States or legal territories;

(2) A copy of a current voter registration issued to the parent or guardian and the parent's or guardian's valid driver license or photo identification license;

(3) A copy of a United States passport issued to the student, parent, or guardian; or

(4) A copy of a veterans affairs identification card, a United States military identification, or a DD-214 issued to the parent or guardian.

(b) A parent or guardian of a student is not required to submit a document to an LEA or public charter school under subsection (a) if:

(1) The parent or guardian has previously submitted a document pursuant to subsection (a) to the LEA or public charter school; or

(2) The parent or guardian is employed by the LEA or public charter school.

(c) Notwithstanding subsections (a) and (b), a parent or guardian of a student may register a student without presenting a document described in subsection (a) if the

parent or guardian pays the LEA or public charter school in an amount equal to the amount representing the per pupil state and local funds generated and required through the Tennessee investment in student achievement formula for the LEA in which the participating student resides.

(d) An LEA or public charter school shall maintain a record that a document described in subsection (a) was submitted upon registration of a student. An LEA or public charter school is not required to retain a copy of the document provided pursuant to subsection (a).

SECTION 2. Tennessee Code Annotated, Section 49-6-3001, is amended by deleting subsection (a) and substituting:

(a) Except as provided in SECTION 1, subsection (c) of this act, public schools are free to all persons residing within the state who are above five (5) years of age, or who will become five (5) years of age on or before August 15.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.